

		that you [paid [sic] to Jams that you have npt [sic] recpovered [sic]. That deduction of [redacted] is not acceptable." (<i>Ibid.</i>) Thus, there is no evidence that the parties ever came to an agreement as to whether the arbitration fees would be deducted from the settlement payment. Nor is there any evidence that the parties agreed in writing that the court would retain jurisdiction pursuant to Section 664.6. The court will deny the motion. The court clerk shall give notice of this ruling.
9	Schifeler vs. Neogenomics Laboratories 30-2025-01483801	<u>Motion to Transfer Venue</u> Defendants Monterey Pathologists Medical Group's and Jeffrey Thomas Keating, M.D.'s Motion to Transfer Venue to Monterey County Superior Court is taken OFF CALENDAR, pursuant to the court's orders issued May 5, 2026 (ROA #60), and Defendant Monterey Pathologists Medical Group and Jeffrey Thomas Keating, M.D.'s Notice of Taking Motion to Transfer Venue to Monterey County Superior Court Off Calendar filed April 30, 2026 (ROA #56).
10	Alliance Funding Group vs. Good Tree Entertainment LLC 30-2022-01293136	<u>Motion to Amend Judgment</u> Plaintiff Alliance Funding Group's Motion to Correct Typographical Error and Amend Judgment Nunc Pro Tunc is GRANTED. The court will issue the proposed Judgment on Stipulation submitted by Plaintiff Alliance Funding Group. (See ROA #83.) <u>Pending Motion</u> Plaintiff Alliance Funding Group moves to correct a typographical error and amend the Judgment entered on June 2, 2025 <i>nunc pro tunc</i>. <u>Standard to Amend Judgment</u> "The general rule is that once a judgment has been entered, the trial court loses its unrestricted power to change that judgment." (<i>Craven v. Crout</i> (1985) 163 Cal.App.3d 779, 782.) However, there is an exception whereby the court may "correct clerical errors in a judgment which has been entered." (<i>Ibid.</i>) Specifically, Civil Procedure Code section 473(d) provides:

The court may, upon motion of the injured party, or on its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed. . . .

(Code Civ. Proc., § 473, subd. (d).)

This statute codifies what has been recognized as a trial court's inherent authority to correct an order or judgment by a *nunc pro tunc* order at any time. (See *Estate of Goldberg* (1938) 10 Cal.2d 709, 717.)

To correct clerical errors in an existing order or judgment, clarifying words may added, (*Ames v. Paley* (2001) 89 Cal.App.4th 668, 674) and extraneous words may be removed, (*Estate of Careaga* (1964) 61 Cal.2d 471, 474–475, 478).

However, the court "may not amend such a judgment to substantially modify it or materially alter the rights of the parties under its authority to correct clerical error." (*Craven v. Crout, supra*, 163 Cal.App.3d at p. 782.)

Proposed Amendment to Judgment

On June 2, 2025, the Court entered the Judgment on Stipulation (Judgment) in accordance with the stipulation of Plaintiff and Defendants Frank Corey Oliver and Talisha Marie Oliver aka Talisha Henderson (Defendants). (See ROA #66.)

Paragraph 5 of the Judgment pertains to the party in favor of whom judgment is entered. (See *id.*, ¶ 5.)

Through checked boxes, the Judgment indicates that judgment was entered "for plaintiff . . . ALLIANCE FUNDING GROUP" and "for defendant . . . FRANK COREY OLIVER and TALISHA MARIE OLIVER aka TALISHA HENDERSON." (See *ibid.*)

Plaintiff submits evidence that judgment should have been entered for Plaintiff only and that the checked box "for defendant" in Paragraph 5 was a typographical error. (See Decl. of Laurel Adams, ¶ 4.) Plaintiff also presented evidence that this was the agreement of the parties. (See *id.*, Exh. 1.)

Defendants have not filed an opposition or responded to the motion, and thus, have waived any arguments against the motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].)

Therefore, the court will grant the motion to amend the judgment.

Plaintiff shall give notice of this ruling.

11	Smith vs. Romero 30-2024-01374547	<u>Motion to Consolidate</u> Defendants Damian Alberto Romero's and Raul Mendenzdelara's Motion to Consolidate Cases is GRANTED in part and DENIED in part. The following cases shall be CONSOLIDATED for purposes of trial only: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287; 4. <i>Chantal Abril Hernandez, et al. v. Damian Alberto Romero</i>, Case No. 2025-01499182. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547 shall be the lead case. The court VACATES the Case Management Conference in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The court SETS a Jury Trial for November 9, 2026 at 10:30 a.m. in Department N15 in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The estimated length of trial: 7-10 Days Parties and counsel are ordered not to schedule any other matters at the same time as the anticipated trial. Parties and counsel shall abide by Local Rule 317 prior to trial. The court clerk is ordered to file a copy of the minute order with this ruling in all of the above cases (See Cal. Rules of Court, rule 3.350(c).) <u>Pending Motion</u> Defendants Damian Alberto Romero and Raul Mendenzdelara (Moving Defendants) move to consolidate the following cases for all purposes: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-